

## 24STCV24173 24STCV24173

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-08-03

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LAM%2C732%2C08%2F03%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C732%2C08%2F03%2F2026)

Source SHA-256: d7223c8c1adf8217a4060e08dd3335a4abfecfa2de162de0cdfba40c1a66cb17

Case Number: 24STCV24173 Hearing Date: August 3, 2026 Dept: 732

Justin Oberlender v. Tony Vargaas, et al.

Monday, August 3, 2026

CASE

NUMBER: 24STCV24173

UNOPPOSED

---

Plaintiff

Justin Oberlender's Motion for Leave to File First Amended Complaint

---

Facts:

This is an action for motor vehicle negligence. The Complaint alleges that Plaintiff Justin Oberlender ("Plaintiff") was injured in a vehicle collision at U.S. Highway 101 and Highland Avenue in Los Angeles on October 30, 2022, caused by the negligence of Defendant Tony Vargas. (Complaint at p. 6.)

Procedural History: Plaintiff filed the Complaint on September 18, 2024, alleging four causes of action:

1. Motor Vehicle Negligence

2. General Negligence

3. Misdemeanor Hit and Run

4. Intentional Infliction of Emotional Distress

Defendant filed an answer on April 14, 2025.

Plaintiff filed the present motion for leave  
to amend on November 18, 2025. No opposition has been filed.

I.

MOTION FOR LEAVE TO  
AMEND

Code Civ. Proc.  
section 473 subd. (a)(1) states that:

The  
court may, in furtherance of justice, and on any terms as may be proper, allow  
a party to amend any pleading or proceeding by adding or striking out the name  
of any party, or by correcting a mistake in the name of a party, or a mistake  
in any other respect; and may, upon like terms, enlarge the time for answer or  
demurrer. The court may likewise, in its discretion, after notice to the  
adverse party, allow, upon any terms as may be just, an amendment to any  
pleading or proceeding in other particulars; and may upon like terms allow an  
answer to be made after the time limited by this code.

“The trial court  
has discretion to permit or deny the amendment of the complaint, but instances  
justifying the court's denial of leave to amend are rare.” (Armenta ex rel. City of Burbank v. Mueller  
Co. (2006) 142 Cal.App.4th 636, 642.)

“Although courts  
are bound to apply a policy of great liberality in permitting amendments to the  
complaint at any stage of the proceedings, up to and including trial  
[Citations], this policy should be applied only ‘[w]here no prejudice is shown  
to the adverse party . . .’ [Citation.] A different result is indicated  
‘[w]here inexcusable delay and probable prejudice to the opposing party’ is  
shown. [Citation.]” (Magpali v. Farmers  
Group, Inc. (1996) 48 Cal.App.4th 471, 487.)

Pursuant to California Rule of

Court Rule 3.1324, "[a] motion to amend a pleading before trial must:

(1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located."

Such a motion must include a

supporting declaration stating, "(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier." (CRC Rule 3.1324, subd. (b).)

Plaintiff Justin Oberlender

("Plaintiff") seeks leave to file a first amended complaint adding a new cause of action for products liability against new defendant Tesla, Inc., based on the failure of the airbags in Plaintiff's vehicle to deploy during the collision at issue. (Morrow Decl. Exh. B.) Plaintiff argues that the amendment was not sought earlier because the facts underlying the claim were only discovered in November 2025, after review of video of the incident. (Morrow Decl. ¶ 9.) The motion is supported by the declaration of Plaintiff's counsel attesting to the effect of the amendment, the reason therefore, and attaching the proposed amended pleading. (Morrow Decl. Exh. B.) The amendment arises from the same collision that is the subject of the operative complaint. No opposition to the motion has been filed.

The motion is therefore

GRANTED.

Superior Court of California

County of Los Angeles

Department 732

JUSTIN OBERLENDER,

Plaintiff,

v.

TONY VARGAS, et al.

Defendants.

Case No.:

24STCV24173

Hearing Date: August 3, 2026

[TENTATIVE] RULING RE:

Plaintiff Justin Oberlender's Motion for Leave to File First  
Amended Complaint

Plaintiff

Justin Oberlender's Motion for Leave to File First Amended Complaint is  
GRANTED..

Plaintiff

to provide notice.

Dated: August 3, 2026

---

Hon.

Richard S. Kemalyan

Judge

of the Superior Court